

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kevin Nicholas	Team: Team # 8	CCRB Case #: 200716077	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/03/2007 4:45 PM	Location of Incident: § 87(2)(b) between § 87(2)(b) and § 87(2)(b)	Precinct: 75	18 Mo. SOL 5/3/2009	EO SOL 5/3/2009	
Date/Time CV Reported Sat, 11/03/2007 9:03 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 11/03/2007 9:03 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Diery Louis	29819	940395	075 PCT
2. POM Anthony Chow	19046	932462	075 PCT
3. SGT Terrence Creighton	02953	921241	075 PCT
4. POM Michael Langlois	26882	930529	075 PCT
5. POM Leonard Mathewson	23347	932976	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Edward Babington	26316	932283	PSA 2
2. POM Victor Troiano	02392	932045	PSA 2
3. SGT Joseph Jette	04749	921442	PSA 2
4. POM Jorge Morel	21184	933057	NARCBBS
5. POM Hugo Ortega	14317	935438	075 PCT
6. SGT James McGarry	01309	919387	075 PCT
7. POM Bilal Ates	30040	934429	GANG BN
8. POM Jason Sharp	16369	935731	GANG BN

Officer(s)	Allegation	Investigator Recommendation
A.SGT Terrence Creighton	Abuse: Sgt. Terrence Creighton authorized stopping the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)
B.POM Diery Louis	Abuse: PO Diery Louis frisked § 87(2)(b)	§ 87(2)(b)
C.POM Diery Louis	Abuse: PO Diery Louis searched § 87(2)(b)	§ 87(2)(b)
D.POM Anthony Chow	Abuse: PO Anthony Chow frisked § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
E.POM Diery Louis	Abuse: PO Diery Louis searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
F.POM Anthony Chow	Abuse: PO Anthony Chow searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	[REDACTED]
G.POM Michael Langlois	Abuse: PO Michael Langlois searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	[REDACTED]
H.POM Leonard Mathewson	Abuse: PO Leonard Mathewson searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	[REDACTED]
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	[REDACTED]
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	[REDACTED]
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	[REDACTED]

Synopsis

On November 3, 2007 at approximately 4:20 PM, § 87(2)(b) along with his friends, § 87(2)(b) and § 87(2)(b) had just left a buffet and were driving in § 87(2)(b)'s vehicle down § 87(2)(b) in Brooklyn. At the corner of § 87(2)(b) they were pulled over by a marked van (**Allegation A**). Two officers, PO Diery Louis and PO Anthony Chow of the 75th Precinct, exited the van and approached their vehicle. PO Louis asked § 87(2)(b) for his documentation and then took this information back to the police van. PO Louis returned a short time later and told § 87(2)(b) to exit the vehicle. PO Louis then frisked and searched § 87(2)(b) (**Allegations B and C**). PO Chow instructed § 87(2)(b) and § 87(2)(b) to also exit the vehicle and frisked both of them (**Allegation D**). PO Louis and PO Chow searched § 87(2)(b)'s vehicle (**Allegations E and F**). Two plainclothes officers, subsequently identified as PO Michael Langlois and PO Leonard Mathewson of the 75th Precinct, arrived at the scene in an unmarked car. PO Langlois and PO Mathewson immediately began searching § 87(2)(b)'s vehicle (**Allegations G and H**) and then left.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

This case was originally assigned to Inv. Davies. Upon his resignation, it was reassigned to the undersigned on April 14, 2008.

Summary of Complaint

§ 87(2)(b) filed this complaint through the CCRB website on November 3, 2007 (encl. 7 A-D). § 87(2)(b) is a § 87(2)(b), black male with black hair. He is employed § 87(2)(b) for § 87(2)(b). He provided a phone statement to the CCRB on November 7, 2007 (encl. 9 A) and was interviewed at the CCRB on November 13, 2007 (encl. 10 A-E). § 87(2)(g).

On November 3, 2007 a little after 4:00 PM, § 87(2)(b) was coming from a restaurant with § 87(2)(b) and § 87(2)(b). § 87(2)(b) was driving a 2004 blue Chevy Impala and § 87(2)(b) was in the front passenger seat. They were listening to music and bobbing their heads a little bit. When they got to the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, they saw a marked police van sitting at a stop sign. § 87(2)(b) signaled and then turned left onto § 87(2)(b). He then went one block, signaled and made a right turn onto § 87(2)(b).

At this point, the same police van pulled them over (**Allegation A**). There were three officers and two or three prisoners in the van. Two black male officers in uniform approached the vehicle. § 87(2)(b) described the officer on the passenger side as a black male, around 5'9-10", in his early thirties and in uniform. This officer was subsequently identified as PO Anthony Chow of the 75th Precinct. In response to § 87(2)(b)'s asking why they had been stopped, PO Chow told § 87(2)(b) that their car had been used "in something."

§ 87(2)(b) asked the officers to read back whatever call they had received. PO Chow promised to do so and said that everything was OK. In his CCRB interview, § 87(2)(b) explained that he was upset in the

beginning and asked a lot of questions but never raised his voice. § 87(2)(b) and § 87(2)(b) were both very quiet.

§ 87(2)(b) handed his license to the officer on the driver's side. § 87(2)(b) described this officer as a black male, around 5'7" tall, with a medium build, low haircut and in his late twenties. He was subsequently identified as PO Diery Louis of the 75th Precinct. PO Louis took § 87(2)(b)'s license back to the police vehicle.

PO Louis returned about two minutes later and handed the license back to § 87(2)(b). He told him to take the keys out of the ignition and step out of the car. PO Louis patted him down (**Allegation B**) and checked his pockets (**Allegation C**). PO Louis put his cigarette lighter on the trunk of the car.

PO Chow asked § 87(2)(b) and § 87(2)(b) to step out. PO Chow patted down § 87(2)(b) and then § 87(2)(b) (**Allegation D**). PO Chow requested their identifications, which he then took back to the van. PO Chow then told them to wait against the gate while he checked things out. In his phone statement, § 87(2)(b) said that they were told to stand against a wall.

Around this time, two plainclothes officers pulled up in a black Crown Victoria and parked their car on § 87(2)(b). § 87(2)(b) described one of these officers as a short white male, who was skinny and had blond hair. This officer was subsequently identified as PO Michael Langlois of the 75th Precinct. § 87(2)(b) described the other officer as a taller white male, around 6'0" or 6'1" and stockier. This officer was subsequently identified as PO Leonard Mathewson of the 75th Precinct.

PO Langlois and PO Mathewson asked the uniformed officers for a flashlight and then went straight to the occupants' vehicle. PO Langlois and PO Mathewson never asked for permission to search the car. There was no conversation amongst the officers prior to the vehicle search. PO Langlois and PO Mathewson checked inside the glove compartment, under the seats, in the bags in the back, all around the interior of the car (**Allegations E and F**). In his phone statement, § 87(2)(b) specified that one of his friends had had a bag of clothing inside the car which the officers searched through. They opened all the doors to the car while searching. The vehicle's occupants were standing 5 to 6 feet from the vehicle at this time. § 87(2)(b) asked PO Langlois if it was legal for them to search the car. PO Langlois replied, "I'm not talking to you." They searched for about five minutes before they drove away. None of the uniformed officers searched the car.

Around this time, a black male officer exited the van. He had a stripe on his arm and was around 6'2", with a muscular build and in his late thirties. This officer was subsequently identified as Sgt. Terrence Creighton of the 75th Precinct. Upon exiting the van, Sgt. Creighton explained to the vehicle occupants that they had appeared suspicious by the manner in which they were moving around when they had turned off § 87(2)(b) and when they had turned right without signaling onto § 87(2)(b). Sgt. Creighton claimed that they had been pulled over because of an illegal right turn.

Results of Investigation

Victim Statement — § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b), § 87(2)(b) black male with black hair. He is employed as a § 87(2)(b) for § 87(2)(b). He provided an initial phone statement on November 7, 2007 (encl. 13 A), an official statement at the CCRB on November 13, 2007 (encl. 14 A-F) and a second phone statement on November 14, 2007 (encl. 15 A).

§ 87(2)(g)

As § 87(2)(b) proceeded down § 87(2)(b) however, the officers activated the police van's siren. § 87(2)(b) drove one block, signaled and made a right turn onto § 87(2)(b). § 87(2)(b) then immediately pulled over in front of § 87(2)(b) between § 87(2)(b) and § 87(2)(b).

(Allegation A). The music was on in the car but none of the vehicle's occupants were doing anything physically which the officers might have construed as suspicious.

Two officers, already identified as PO Louis and PO Chow, approached § 87(2)(b)'s vehicle. PO Louis requested § 87(2)(b)'s license, registration, and insurance. § 87(2)(b) handed his license and registration to PO Louis, who returned to the police van. PO Louis was in the van for only 15 seconds before returning and handing § 87(2)(b) back his information. § 87(2)(b) was a little upset and complaining to PO Louis but § 87(2)(b) told him to stay calm. However, when PO Louis heard § 87(2)(b) complaining, he told § 87(2)(b) to put the keys on the dashboard and step out of the vehicle.

§ 87(2)(b) stepped out of the car and walked to the rear driver side of his vehicle. In his phone statement, § 87(2)(b) stated that PO Louis had asked if he could pat him down. § 87(2)(b) replied, “ ‘Sure, I don't have any weapons...’ but I also told him, ‘Make sure you don't plant anything on me either.’” In his interview, PO § 87(2)(b) answered yes when asked if PO Louis had asked if he could frisk him. § 87(2)(b) then immediately corrected himself – PO Louis did not ask him. PO Louis had said he was going to frisk § 87(2)(b) this was not presented as an option.

PO Louis asked § 87(2)(b) if he had anything in his pockets that would hurt him. § 87(2)(b) said no, he only had a cell phone, a wallet, a pack of cigarettes, and a lighter in his pocket. PO Louis then patted him down on his back and legs and in between the thighs **(Allegation B)** and went inside his pockets **(Allegation C)**. PO Louis removed change from his pockets which he then immediately returned. PO Louis opened up his wallet, removed his license and left the wallet on the trunk of the car.

PO Chow asked § 87(2)(b) and § 87(2)(b) to step out of the vehicle. In his phone statement, however, § 87(2)(b) said it was PO Louis who ordered § 87(2)(b) and § 87(2)(b) out of the vehicle. PO Chow frisked § 87(2)(b) and § 87(2)(b) on the right side of the car **(Allegation D)**. § 87(2)(b) could not tell if PO Chow was searching them or just frisking them. He saw however that their wallets were placed on the back of the car. PO Chow asked for their identifications and they provided this information. They then were told to stand on the sidewalk. In the van the officers wrote down all their names and information.

Two plainclothes officers wearing NYPD jackets, identified as PO Langlois and PO Mathewson, pulled up in a dark blue Crown Victoria. § 87(2)(b) described both of these officers as stocky white males, around 5'9" and in their thirties.

§ 87(2)(b) remembered that one of the plainclothes officers was carrying a large black flashlight. PO Langlois and PO Mathewson greeted the officers at the scene, went straight to § 87(2)(b)'s car and began searching it **(Allegations E and F)**. There was no conversation between the plainclothes and uniform officers prior to the vehicle search and the officers never asked § 87(2)(b) for permission to search the vehicle. PO Langlois and PO Mathewson searched the dashboard, the glove compartment, under the mats, under the seats, and the backseat. They looked inside a bag. They searched the car for 20 to 25 seconds. § 87(2)(b) said “You're fishing for something.” One of the plainclothes officers said, “I only talk to the guys with the badges.” After completing the vehicle search, PO Langlois and PO Mathewson got back in their vehicle and drove away. The uniformed officers were never involved in the vehicle search.

A sergeant, identified as Sgt. Creighton, who had been standing just outside the passenger door of the police van, approached at this time and told § 87(2)(b) and his friends that they had been stopped because they didn't make a left turn signal. In his phone statement, § 87(2)(b) mentioned that Sgt. Creighton said something about how there had been a lot of shootings in the area. The sergeant was a tall dark-skinned black male, 5'10" -5'11", 195 lbs., with no facial hair.

§ 87(2)(b) told Sgt. Creighton that he disagreed with him; he *had* properly activated his left turn signal. PO Louis interrupted and said that he could give § 87(2)(b) a summons for the tints on his vehicle. § 87(2)(b) told PO Louis that his tints were legal. PO Louis replied that he did not have a tint meter with him. PO Louis added that their 2004 Chevy Impala had been involved in some incidents. § 87(2)(b) asked to see the reports and PO Louis said that he would not show him the reports. § 87(2)(b) wrote

down PO Chow and PO Louis' names by reading them from their respective badges and then wrote down their car number, 5865. PO Chow and PO Louis officers also verbally provided their names. At the end of the interaction, PO Louis said, "Thank you for your cooperation. Have a nice day." The officers left and § 87(2)(b) called 911 five minutes later to file a complaint.

Victim Statements — § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b), § 87(2)(b) black male with brown hair. He provided a phone statement on November 7, 2007 (encl. 11 A) and an official statement at the CCRB on November 13, 2007 (encl. 12 A-E).

§ 87(2)(g)

After being pulled over (**Allegation A**), § 87(2)(b) asked a lot of questions. In response, PO Louis said they had gotten a call about an incident with an Impala. PO Louis also cited that there had been a lot of movement in the car.

PO Louis went to the police van for a minute and then returned. PO Louis told § 87(2)(b) to get out of the car and patted him down by the car (**Allegation B**). PO Louis took everything out of § 87(2)(b)'s pockets at the back of the car (**Allegation C**). PO Louis asked § 87(2)(b) to step out of the car, patted him down by the back of the car (**Allegation D**), took everything out of his pockets and told him to step to the side. PO Louis then asked § 87(2)(b) to step out, patted him from his shoulders down (**Allegation D**), took everything out of his pockets, put his things on the trunk, and told him to stand on the side. At this time, PO Chow just stood by while PO Louis frisked and searched all three vehicle occupants.

After they were all patted down, they stood on the sidewalk. At this point, PO Louis and PO Chow searched the car by themselves. They did not ask anyone if they could search the car. They searched in the front and back seats and opened all the doors. PO Louis was searching on the driver's side and PO Chow was searching on the passenger's side. They searched the car for about a half-hour.

After the vehicle search, an officer spoke into the radio on his shoulder and requested back up. Two white male officers in plainclothes, PO Langlois and PO Mathewson, arrived in a dark blue car. PO Langlois and PO Mathewson approached the car and asked PO Louis and PO Chow if they had searched the car. PO Louis and PO Chow replied, "Only the front." The uniformed officers searched the front (**Allegations E and F**) and the plainclothes officers searched the back seat of the car (**Allegations G and H**). PO Louis and PO Chow then spoke to them while PO Langlois and PO Mathewson continued searching the entire car but not the trunk. They were looking in between the seats, underneath the seats, and picking up everything in the car. PO Langlois and PO Mathewson searched the car for about twenty minutes and then left the scene immediately thereafter.

PO Chow asked them for their identifications. PO Chow claimed that the police had received a call about an Impala and "y'all were dancing a lot in the car and we didn't know what was going on so we had to pull you over." But PO Chow then said that the ultimate reason they had pulled them over was for not signaling. PO Chow said that it was procedure that, upon receiving a call about an Impala, they needed to pull them over. § 87(2)(b) asked the officers to read back this alleged call and the officers refused.

A dark skinned black male officer, identified as Sgt. Creighton, appeared at this time. Sgt. Creighton apologized for the inconvenience, handed them their IDs, and told them they should have a nice day. After the officers left, § 87(2)(b) walked home.

Officer Statements – PO Diery Louis

PO Diery Louis is a black male who is § 87(2)(b), § 87(2)(b), has black hair, and is § 87(2)(b) old. He has been a member of service for two years and is currently assigned to the 81st Precinct. On November 3, 2007 PO Louis was assigned to the SNEU team and was traveling in the prisoner van, RMP number 5668. He was in uniform and partnered with PO Chow. According to his memo book (encl. 16 A-C), he had a 9:30 AM by 6:05 PM tour that day. His memo book entries contain no mention of this incident.

PO Louis was interviewed at the CCRB on February 6, 2008 (encl. 17 A-C). Sgt. Creighton was his supervisor. PO Louis did not believe that Sgt. Creighton was with him at the time of the incident, but he may have been because PO Louis usually drives Sgt. Creighton.

At the time of this incident, PO Louis had made earlier arrests and so there were two male prisoners inside the prisoner van. PO Louis was driving the van when he observed § 87(2)(b)'s vehicle traveling eastbound on § 87(2)(b). PO Louis could not recall at what intersection he first saw it. PO Louis turned behind the vehicle, at which time § 87(2)(b) made a right turn without using his signal. As a result, PO Louis decided to pull § 87(2)(b) over for a traffic infraction. PO Louis later observed that § 87(2)(b) was also not wearing a seatbelt. PO Louis turned on his sirens and ten seconds later he saw § 87(2)(b) making a dipping motion and putting something under the seat of the vehicle. While holding the steering wheel with his left hand, § 87(2)(b) had bent over to his right and had put his right hand under the seat. This action raised PO Louis' suspicion that § 87(2)(b) had a weapon and was trying to conceal it. Neither of the passengers, § 87(2)(b) and § 87(2)(b) had done anything that caught PO Louis' attention. PO Chow also observed § 87(2)(b) making the dipping motion under the seat. PO Louis and PO Chow discussed what they had seen prior to initiating the vehicle stop.

PO Louis pulled over § 87(2)(b)'s vehicle on § 87(2)(b). He approached the driver's side window and identified himself as PO Louis. PO Louis asked § 87(2)(b) for his driver's license and his registration. § 87(2)(b) complied. § 87(2)(b) asked PO Louis why he had been stopped. PO Louis explained that it was because § 87(2)(b) had made a right turn without signaling. § 87(2)(b) was "absolutely a gentleman, that's the reason why he did not get a summons." § 87(2)(b) on the other hand, was "very aggressive" and did not want to talk to the officers. § 87(2)(b) claimed that he had been pulled over in the past and did not understand why they had been stopped. PO Louis told § 87(2)(b) that he was speaking to the § 87(2)(b) not to him. PO Chow was standing by the right rear door of the vehicle at this time and covering PO Louis by keeping an eye on the other passengers.

In his interview, PO Louis explained that he wanted to get § 87(2)(b) out of the vehicle before he even asked for § 87(2)(b)'s license and registration. PO Louis explained that this was because if § 87(2)(b) did in fact have a weapon under the seat of the vehicle, he wanted to distance § 87(2)(b) from it.

PO Louis asked § 87(2)(b) to step to the rear driver side of the vehicle. § 87(2)(b) complied. PO Louis asked § 87(2)(b) what he had put under the seat of the vehicle. § 87(2)(b) replied, "Nothing." PO Louis asked him if he had anything on him or in his vehicle. § 87(2)(b) answered that he had nothing on him or in his car, but added that he did not know about the other two males. PO Louis asked § 87(2)(b) directly whether either of the other two males had anything. § 87(2)(b) replied that he did not know.

§ 87(2)(b)'s answers raised PO Louis' level of suspicion about him. PO Louis therefore asked § 87(2)(b) if he could frisk him. After, § 87(2)(b) replied that he could, PO Louis frisked him. Later in his interview, PO Louis stated that the reason he decided to frisk § 87(2)(b) was because when § 87(2)(b) stepped out of the vehicle, he had put his hands in his jacket pockets, a motion that made PO Louis suspicious.

PO Louis did not see any bulges on § 87(2)(b)'s person. PO Louis also then stated that he frisked § 87(2)(b) prior to discussing with him whether he had any weapons on his person or in the vehicle. PO Louis said that § 87(2)(b)'s demeanor at the scene had also raised his suspicion that § 87(2)(b) might have a weapon. PO Louis explained in his interview that oftentimes in scenarios like this, friends of a

suspect will “act rowdy” to draw the officer’s attention away from the suspect. He did not find anything during the frisk of § 87(2)(b).

§ 87(2)(b)’s behavior also made PO Louis suspicious of the other passengers. Therefore, PO Chow asked § 87(2)(b) and § 87(2)(b) to step out. § 87(2)(b) asked why.

PO Louis asked § 87(2)(b) if he could look inside the vehicle. § 87(2)(b) gave him permission to do so. PO Louis and PO Chow proceeded to look under the driver’s seat where they found a “little knife”, approximately four inches in length, which “could qualify as a gravity knife.” PO Louis also searched in the lungable, grabable, area of the car, around the seat, inside the door, and under the seat where he saw § 87(2)(b) reach. PO Louis did not search the passenger’s side at all because he had not seen § 87(2)(b) who had been on the passenger side, make any suspicious movements. PO Louis stated that he had been in charge of the left side of the car and PO Chow had been in charge of the right side of the car. PO Louis did not search in the backseat or in the trunk at all. PO Louis did not recall if PO Chow searched the right side of the car but did not believe that he did. When asked if any other officers searched the car, PO Louis replied, “not that I know of.”

After recovering the knife, PO Louis felt at ease because he had been concerned that there might be a gun instead. PO Louis said that because of the knife, he could have issued § 87(2)(b) a criminal court summons, but ultimately he declined to do so.

While PO Louis was speaking to § 87(2)(b), PO Chow spoke to § 87(2)(b) and § 87(2)(b). PO Chow asked § 87(2)(b) and § 87(2)(b) whether he could frisk them. § 87(2)(b) agreed but § 87(2)(b) refused. Nevertheless, PO Chow frisked them both and found a small knife on § 87(2)(b). PO Louis said that this was “no problem because it was a small little knife.” PO Louis could not at all describe the knife.

PO Louis explained that PO Chow frisked § 87(2)(b) and § 87(2)(b) because they were both “getting rowdy for no apparent reason.” § 87(2)(b) was screaming and yelling at PO Chow the entire time. PO Louis did not know if PO Chow searched either § 87(2)(b) or § 87(2)(b) but said that this was “unlikely.” PO Louis himself never frisked or searched either of them.

PO Louis explained to the vehicle occupants that they had been stopped because they had turned without using their lights. PO Louis told the men, however, that they would not be issued any summonses. § 87(2)(b) claimed that his light wasn’t working, and this was why he had not signaled. PO Louis advised § 87(2)(b) to get this fixed.

PO Louis then prepared UF-250 reports for the men. Upon direct questioning, PO Louis stated that he specifically prepared a UF-250 for § 87(2)(b). PO Louis claimed that he filled out the UF-250 by talking to § 87(2)(b). On the UF-250, PO Louis recorded that § 87(2)(b) was stopped for criminal possession of a weapon. The entire stop took less than five minutes.

PO Louis stated that he had used his discretion in not issuing § 87(2)(b) a summons. He did this because § 87(2)(b) had been compliant throughout the interaction.

PO Louis was able to positively identify § 87(2)(b) but not § 87(2)(b) or § 87(2)(b).

When PO Louis was asked if any other officers came by at any point, he said no. The rest of PO Louis’ team was “on set” at Ashford and New Lots Avenue, which was about 3 or 4 blocks away. The team did not put anything over the radio regarding this incident.

PO Louis stated that the SNEU team had only one unmarked car which had served as the observation post. PO Louis stated that the team kept working while he brought prisoners to the precinct.

PO Louis claimed that he and PO Chow did not have the codes necessary to check license plates or licenses for warrants, so therefore no checks were conducted at the scene. PO Louis never called another car to the scene to run the license plate and did not call the stationhouse to have them check it.

Officer Statements – PO Anthony Chow

PO Chow is a black male who is § 87(2)(b), § 87(2)(b), has black hair, and is § 87(2)(b) old. PO Chow has been a member of service for five years and is currently assigned to Brooklyn North Narcotics. On the date of the incident, PO Chow worked from 9:35 AM to 6:05 PM, was assigned to SNEU with PO Louis, was in uniform and was in a marked prisoner van. PO Chow had no memo book entries (encl. 18 A-B) except for the start and end of his tour. PO Chow stated that Sgt. Creighton, PO Morrell, and PO Ortega were on his team on the date of the incident.

PO Chow was interviewed at the CCRB on March 4, 2008 (encl. 19 A-B).

The officers were doing routine patrol and not heading anywhere in particular in the precinct. Sgt. Creighton was present with them. There were no prisoners in the van.

Around the time of the incident, the officers observed an Impala traveling eastbound on § 87(2)(b). The vehicle turned south onto § 87(2)(b) without signaling a right turn. There had not been any radio reports about suspicious activity. The officers activated their emergency lights to stop the vehicle. The officers observed all of “the passengers making a lot of movements as if they were trying to put something on the ground or hide something in the vehicle.” PO Louis saw the same thing and they discussed it together. Sgt. Creighton also saw that the occupants were moving inside the car but did not discuss it with the officers. Sgt. Creighton sat in the van during the stop and only came out once during the incident.

The movements in the vehicle made PO Louis and PO Chow concerned that the occupants may have knives or guns. PO Chow was particularly concerned about the passenger in the backseat, later identified as § 87(2)(b) because he clearly looked back at the officers, looked down under his seat, and made the most movement. The officers were only concerned that they were hiding a weapon – not anything else. The intention of the stop was to issue them a summons. However, because they were later admonished a summons was not issued.

PO Louis approached the driver’s side door while PO Chow walked to the car on the rear of the passenger’s side. PO Louis spoke to the driver, § 87(2)(b) and requested his identification. PO Chow did not hear anything more of their conversation, but after two minutes § 87(2)(b) exited the vehicle. PO Louis requested § 87(2)(b)’s insurance and § 87(2)(b) complied. PO Louis asked § 87(2)(b) if he had any weapons and patted him down by the driver’s side door. § 87(2)(b) did not have anything on his person.

PO Chow spoke to the two passengers, § 87(2)(b) and § 87(2)(b) and they were “irate but compliant.” They were asking why they had been stopped and PO Chow told them it was because they had failed to signal when they had turned. PO Chow asked them both to exit and they complied. They both complied. While by the front passenger side door, PO Chow patted around their waistbands.

PO Chow explained that he planned to frisk them when he first approached the car to make sure they did not have weapons. PO Chow further explained that he frisked them because “they were moving around in the vehicle, they might have stashed something or took something from the ground to try to hurt me or my partner.” Nothing that they did or said after he approached their car raised his suspicion that they had weapons. PO Chow never searched inside their pockets and never felt anything during the frisk that might have been a weapon. He asked them for their identifications and they handed them to him.

PO Chow then looked inside the vehicle and didn’t observe anything at that point. The car door was already open; PO Chow never crossed the plane of the doorway but merely looked in through the open passenger door. PO Chow never searched under the seats or in the glove compartment. PO Chow never considered searching the vehicle because he had looked and seen that there were no weapons on the floor. When asked

whether PO Louis searched the car, PO Chow replied, “Not that I know of.” PO Chow did not observe whether PO Louis conducted a visual inspection of the car.

PO Chow handed PO Louis the passengers’ IDs. PO Louis went back to the van alone and checked occupants’ license. These checks yielded negative results. All three of the occupants of the car were standing on the sidewalk at that point.

PO Louis then spoke to § 87(2)(b) and told him that he had been stopped for failing to signal when he turned. PO Louis handed § 87(2)(b) his ID and warned him to always signal when he made turns. As they were leaving, Sgt. Creighton exited because the occupants were more irate about having been stopped. Sgt. Creighton explained to them that they had not signaled their turn. The individuals were a little bit calmer after Sgt. Creighton spoke to them. They were not issued summonses because they had been admonished. No paperwork, such as stop and frisk reports, were prepared. No other officers came to the scene at any point. PO Chow could not recall any other officers searching the car. There were never any knives found on the scene or on any of the occupants.

Officer Statements – Sgt. Terrence Creighton

Sgt. Terrence Creighton is a black male who is § 87(2)(b), § 87(2)(b), has black hair, and is § 87(2)(b) old. He was interviewed at the CCRB on March 14, 2008 (encl. 21 A-C). Sgt. Creighton has been a member of the NYPD for ten years and is currently assigned to the 75th Precinct. On the date of the incident Sgt. Creighton worked from 12:45 PM to 12:12AM, was assigned as the SNEU sergeant in a marked van, was in uniform, and was partnered with PO Chow and PO Louis. Sgt. Creighton had no relevant memo book entries (encl. 20 A-B).

On the date of the incident his team was monitoring known narcotic locations for drug activity. At the time of this incident, they were en-route from one location to another. Sgt. Creighton had arrests during his tour but could not recall if the arrests happened before or after this incident.

One of the officers observed a vehicle traveling eastbound on § 87(2)(b) turn right onto § 87(2)(b) without signaling. After the officers activated the emergency lights, the vehicle’s three occupants made a lot of furtive movements inside the vehicle. Sgt. Creighton said, “They were basically bending down, kind of like you’d want to conceal something, if bending down you see them motioning in the vehicle. It did look suspicious, which is why the officers asked them to exit the vehicle.” Sgt. Creighton was not completely sure, but believed that both passengers were making the movements while the car was in motion, and upon stopping, the driver was also making movements. These movements made Sgt. Creighton concerned that the occupants were trying to conceal a weapon. Sgt. Creighton further stated, “From the movement we don’t know who is trying to conceal what which is basically what we are trying to find out.” There was no discussion about what all three the officers observed but they wanted to find out why there had been movement. Sgt. Creighton did not issue any instructions to his officers before they exited because he trusted their judgment.

Sgt. Creighton stepped out of the van, stood on the sidewalk to the rear of the car’s passenger side, and observed the scene. He did not recall the passengers doing anything inside the car when the officers first approached. He could not hear his officers’ conversations with the occupants. He could not recall which sides of the car the officers approached. Sgt. Creighton was not sure which occupant exited the car first but was certain that all three occupants exited the car at some point. The officers frisked all three occupants on the sidewalk. Sgt. Creighton could not recall the officers searching any of the individuals. The officers did not find anything and never removed anything from the occupants’ pockets.

Afterwards, the officers searched the car. Sgt. Creighton could not recall who searched the car. He later said in his interview that it was probably “just one of them.” Sgt. Creighton did not speak to the officers about searching the car. When asked if he instructed his officers at any point to check for weapons inside the car, Sgt. Creighton replied, “I didn’t instruct them but if there’s furtive movements, of course we’re going to check to find out why that person’s doing a furtive movement in that location.” When asked if he expected the officers to search in the car, Sgt. Creighton replied, “That’s their training.” There was nothing

that any of the individuals did after they were stopped that raised the officers' suspicion that they might have weapons.

The officers looked in "the lungable, grabable area where the occupants were moving around." When asked where "physically" in the car they looked, Sgt. Creighton replied, "I can't tell you that, I was on the sidewalk while they were conducting this, I wasn't physically watching. I had my eyes on three people. I can't watch three people and watch what they're doing in the vehicle at the same time."

The officers searched the car for approximately two or three minutes. Sgt. Creighton assumed that they opened doors of the car at some point but did not recall which doors they opened. Sgt. Creighton confirmed that the officers looked in the backseat of the car.

Sgt. Creighton originally stated that the officers did not find any weapons. Later in his statement, Sgt. Creighton volunteered that the officers found a very small knife beneath the driver's seat. When later asked where it was found, he said that he was not sure. Sgt. Creighton described the knife as a "switchblade" that you can flip out and lock into place. He estimated that the knife had a three-inch-long to three-and-a-half inch-long blade. Sgt. Creighton could not recall whether he discussed the knife with his officers or the occupants, but believed that the officers discussed the knife with the occupants. No police action was taken since the knife was less than four inches.

Both officers took the occupants' identifications. The occupants were still on the sidewalk at this point. Sgt. Creighton was not certain but did not believe that a plate check or warrant checks were conducted. Sgt. Creighton believed that the computer in their car was broken at the time. The three occupants were very calm and were asking why they had been stopped. One individual was complaining and asked why he was stopped. Sgt. Creighton later told him that he had made a traffic infraction and the officers had seen movement inside the vehicle. The occupants seemed satisfied with this answer. The officers admonished them and did not issue any summonses.

Sgt. Creighton could not recall whether any other officers appeared at the scene. The rest of Sgt. Creighton's team was en-route from one location to the next. To Sgt. Creighton's recollection, no other officers searched inside the car.

The officers got inside their van and left the scene.

When asked whether any stop and frisk reports were prepared, Sgt. Creighton answered, "Not that I know of, but the officers did take their information, which is the only reason we would take their information is to prepare a stop and frisk." When asked whether he instructed his officers to fill out stop and frisk reports, he answered, "Like I said, you take the information that's what it's for. That's also in their training, they know if someone is stopped they have to prepare a 250, which is a stop and frisk."

Officer Statements – PO Leonard Mathewson

PO Leonard Mathewson is a § 87(2)(b)-old white male who is § 87(2)(b), § 87(2)(b), and has brown hair. He was interviewed at the CCRB on April 7, 2008 (encl. 23 A-B). PO Mathewson resigned from the NYPD on May 30, 2008. At the time of the incident, he had been a member of service for four years. On November 3, 2007, he had a 1:00 PM by 7:05 PM tour. He was assigned to the SNEU apprehension car, an unmarked sedan – RMP § 87(2)(e), § 87(2)(g). He was working with PO Michael Langlois and was in uniform. His memo book entries (encl. 22 A-B) contain no mention of this incident.

On November 3, 2007, there were SNEU operations going on at several locations. There was an observation team in an unmarked car in plainclothes. The apprehension car would then stop individuals observed in drug transactions and arrest them. The officers stay apart from each other in general. PO Mathewson did not process any arrests during that tour. He did not know if someone was arrested during the tour. He said that sometimes the prisoner van would apprehend people instead of the apprehension car.

The prisoner van came over the point-to-point radio and reported that they had a vehicle stopped at the corner of § 87(2)(b) and § 87(2)(b). They did not mention whether there had been any calls regarding this car. The prisoner van did not request the apprehension unit at the scene but was simply providing its own location. The prisoner van did not provide any further information as to why the car had been stopped. However, having been on the same narcotics set, the apprehension team happened to be in the vicinity.

PO Mathewson and PO Langlois drove slowly over to the scene to back up their partners. Upon their arrival at the scene, they parked behind the prisoner van. At this time, Sgt. Creighton was speaking with one individual by the side of the road. PO Mathewson did not hear the conversation. PO Mathewson could not recall what the individual looked like or whether there were any other civilians present. Other officers were present but PO Mathewson could not recall where they were or what they were doing. PO Mathewson did not see any officers frisking or searching anyone or searching the car.

PO Mathewson and PO Langlois exited their vehicle to assist. However, Sgt. Creighton turned towards them and wordlessly waved them off. As a result, they left the scene. They did not have any conversation or further interaction with Sgt. Creighton at the scene.

PO Mathewson denied looking inside the individual's car or searching it. PO Mathewson denied having any interaction with any of the vehicle's passengers.

Officer Statements – PO Michael Langlois

PO Langlois is a § 87(2)(b), § 87(2)(b) old white male with brown hair. He was interviewed at the CCRB on April 11, 2008 (encl. 25 A-B). He has been a member of service for six years and is currently assigned to the 75th Precinct. On November 3, 2007, he had a 1:00 PM by 9:35 PM tour and was assigned to the SNEU apprehension car along with PO Mathewson. He was in uniform and traveling in § 87(2)(e), § 87(2)(f) an unmarked blue Crown Victoria. He did not have any memo book entries (encl. 24 A-C) regarding this incident.

On November 3, 2007 at approximately 4:45 PM, PO Langlois' boss reported over the team's point-to-point radio that he had a car stop. Typically, his boss would say where he is and provide the number of occupants in the stopped vehicle. His boss did not say why the car had been stopped and did not mention anything about there being a report about the car. His boss did not actually request that they go to the scene.

As a courtesy, PO Langlois and PO Mathewson made their way over to the car stop location – he could not remember where it was. They arrived a couple minutes later and parked behind the police van. Sgt. Creighton was standing parallel to the van and talking to a black male on the sidewalk. It seemed like a normal conversation but PO Langlois could not hear anything specific. The black male was not in handcuffs. PO Langlois had not gotten fully out of his vehicle when Sgt. Creighton gave him the thumbs up and said, "Go 98 (resume patrol)."

PO Langlois sat back in his vehicle and drove away. PO Mathewson never exited the car. They had been present at the scene for about thirty seconds. They radioed the observation post to find out their location and then went there. PO Langlois never even saw the car that had been stopped. PO Langlois could not remember if there were any other officers at the scene. PO Langlois said that it was possible that other officers were present but he just couldn't see them. PO Langlois did not see any marked cars at the scene. PO Langlois did not see any other civilians besides the black male.

PO Langlois explained that if one unit is conducting a car stop, one unit always stays with the observation post. He said that being assigned to the chase car, he usually stayed with the observation post for safety reasons.

Requests for SPRINT

Requests for the SPRINT sent to MAS on November 7, 2007 (encl. 36 LL) and November 20, 2007 (encl. 36 II) yielded negative results.

Request for Warrant Check Information

The MISD search results (encl. 26 A-B) for any warrant checks conducted on the three vehicle occupants and for § 87(2)(b)'s license plate yielded negative results.

Requests for UF-250s

The UF-250 index for the 75th Precinct on November 3, 2007 (encl. 27 A-I) contains no UF-250s prepared for the three vehicle occupants. None of the officers interviewed in regards to this case prepared any UF-250s on the day of the incident. Sgt. Creighton does not appear as the reviewing supervisor for any UF-250 prepared that day.

A separate request sent to MAS on November 7, 2007 (encl. 36 EE) yielded negative results for any UF-250s prepared in regards to § 87(2)(b), § 87(2)(b) or § 87(2)(b). The UF-250 index provided by MAS (encl. 28 A-B) contained similar results to those found in the index provided by the 75th Precinct.

Roll Call and Fleet Information

The tour 3 roll call for the 75th Precinct (encl. 29 A-C) indicates that Sgt. Creighton was the SNEU supervisor on the day of the incident and had a 12:45 PM by 9:42 PM scheduled tour. By cross-referencing the vehicle numbers on the roll call with the fleet information provided by MAS (encl. 30 A-C), it was determined that the SNEU team was comprised of PO Louis and PO Chow in RMP 5352, a marked van, PO Mathewson (white male) and PO Langlois (white male) in § 87(2)(e), § 87(2)(f), a blue Ford Crown Victoria, and PO Ortega (Hispanic male) and PO Morel (Hispanic male) in § 87(2)(e), § 87(2)(f), a grey Ford Crown Victoria. They all had assigned tours of 1:00 PM by 9:33 PM tour. Next to PO Chow's name, it states that he had a new arrest.

The only other plainclothes unit working that day was the anti-crime team. This team was comprised of Sgt. McGarry (white male), PO Ates (white male) and PO Sharp (white male). All three were assigned to § 87(2)(e), § 87(2)(f), a black Chevy Impala.

Separation of Service Information for PO Leonard Mathewson

A request sent to MAS on December 2, 2008 (encl. 36 A) confirmed that PO Mathewson resigned from the NYPD on May 30, 2008.

Notice of Claim Request

The Office of the Comptroller advised on December 1, 2008 that they had no record of a Notice of Claim being filed in regards to the above incident (encl. 37 A-C).

§ 87(2)(b)'s DMV History

§ 87(2)(b)

§ 87(2)(b)

The DMV records for the license plate he provided (encl. 34 A) indicate that his vehicle is registered in his name. It is a four-door, blue Chevy sedan.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB History of Substantiated Allegations

In case 200507325, the Board substantiated an allegation of ‘Abuse – Question and/or Stopped’ and an allegation of ‘Abuse – Strip-Searches’ against PO Michael Langlois. [§ 87(2)(g), § 87(4-b)] [§ 87(2)(b)] The NYPD was unable to prosecute the ‘Abuse – Question and/or Stopped’ allegation but ordered a ‘Command Discipline – A’ in regards to the ‘Abuse – Strip-Searches’ allegation. A penalty of ‘Command Discipline – A’ was imposed.

In case 200402438, the Board substantiated an allegation of ‘Force – Physical Force’ against PO Leonard Mathewson. The PD ordered instructions for PO Mathewson.

PO Diery Louis, PO Anthony Chow and Sgt. Terrence Creighton have never had any allegations substantiated against them at the CCRB (encl. 5 A-E).

Conclusions and Recommendations

Officer Identification

PO Louis and PO Chow claimed to have seen [§ 87(2)(b)] fail to signal when making a right turn off of [§ 87(2)(b)]. Although Sgt. Creighton claimed not to have seen this infraction, he said that one of the two officers informed him what happened, [§ 87(2)(g)] [§ 87(2)(b)].

PO Louis, PO Chow and all of vehicle occupants agree that PO Louis approached the driver side of the vehicle and PO Chow approached the passenger side of the vehicle. PO Louis acknowledged that he frisked [§ 87(2)(b)]. [§ 87(2)(b)] alleged that the officer who frisked him also searched him [§ 87(2)(g)] [§ 87(2)(b)].

[§ 87(2)(b)], [§ 87(2)(b)] and PO Chow agreed that PO Chow frisked [§ 87(2)(b)] and [§ 87(2)(b)]. [§ 87(2)(b)] was the only individual to claim that PO Louis did this. However, because PO Louis was interacting with [§ 87(2)(b)] the investigation determined that he did not frisk [§ 87(2)(b)] [§ 87(2)(g)].

Although [§ 87(2)(b)] and [§ 87(2)(b)] never implicated PO Louis or PO Chow in the vehicle search, PO Louis and [§ 87(2)(b)] agreed that PO Louis and PO Chow both searched the vehicle. [§ 87(2)(g)] [§ 87(2)(b)].

[§ 87(2)(g)] [§ 87(2)(b)] said these officers were wearing plainclothes, while [§ 87(2)(b)] and [§ 87(2)(b)] added that they had NYPD jackets and a blue vehicle. Both PO Langlois and PO Mathewson claimed that they were in uniform that day, but both officers acknowledged that they appeared at the scene and records indicate that they had a blue vehicle that day. [§ 87(2)(g)] [§ 87(2)(b)] [§ 87(2)(g)] [§ 87(2)(b)]

Undisputed Facts

It is undisputed that the officers pulled over § 87(2)(b)'s vehicle after he made a right turn off of § 87(2)(b). It is undisputed that PO Louis approached the driver side of the vehicle and PO Chow approached the passenger side. It is undisputed that PO Louis spoke briefly to § 87(2)(b) before ordering him to step out of his vehicle. At some point, PO Chow ordered both § 87(2)(b) and § 87(2)(b) out of the vehicle. It is undisputed that § 87(2)(b) was being contentious. It is undisputed that PO Louis frisked § 87(2)(b). It is undisputed that PO Chow frisked both § 87(2)(b) and § 87(2)(b) on the passenger side of the vehicle. It is undisputed that PO Langlois and PO Mathewson arrived at the scene at some point. It is undisputed that officers searched the vehicle. It is undisputed that Sgt. Creighton approached towards the end of the interaction and explained to the occupants why they had been pulled over.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(g)

All three civilians mentioned that the music was playing inside the vehicle. § 87(2)(b) and § 87(2)(b) added that the occupants had been moving around inside the vehicle in response to the music. The officers said that they saw the civilians moving around inside the vehicle, § 87(2)(g). PO Louis said that after he activated the siren, he saw § 87(2)(b) reaching under the driver's seat. There was nothing about the two passengers which caught his attention. On the other hand, PO Chow said that all three occupants were moving around, and he was the most concerned about § 87(2)(b) because he had looked back, looked under the backseat, and made the most movement. Like PO Chow, Sgt. Creighton also said that all of the occupants were making furtive movements. He did not cite anyone in particular; he said that all three were bending down and appeared to be trying to conceal something. § 87(2)(g)

Although it is undisputed that PO Louis frisked § 87(2)(b) § 87(2)(g). In his official statement, he first said that he did grant permission and then later corrected himself and said that he did not. In his phone statement, on the other hand, § 87(2)(b) indicated that PO Louis asked for permission and § 87(2)(b) granted it. PO Louis claimed to have frisked § 87(2)(b) only after obtaining his permission. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) In his official statement, he indicated that after he stepped out of the car, PO Louis asked if he had anything in his pockets that would hurt the officers. After § 87(2)(b) said no, PO Louis frisked him and then removed the change from his pocket, which he immediately returned. He then opened up the wallet, removed the license and left the wallet on the trunk of the car. § 87(2)(g)

§ 87(2)(b) indicated that PO Louis frisked § 87(2)(b) by the side of the car and then took everything out of his pockets by the back of the car. § 87(2)(b) did not specify where § 87(2)(b) was searched but said the PO Louis put his lighter on the back of the trunk.

PO Louis denied searching § 87(2)(b) and PO Chow; § 87(2)(g)

§ 87(2)(g) PO Louis confirmed § 87(2)(b) s allegation that he searched the front driver side of the vehicle. § 87(2)(g)

§ 87(2)(b) Sgt. Creighton claimed to not know whether both officers were involved in the search. He said it was “probably” just one officer but he could not say for certain which one. As for PO Chow’s claim § 87(2)(g)

§ 87(2)(b) He claimed that all of the vehicle occupants were moving around and he feared that they were stashing something or picking up something. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) PO Langlois and PO Mathewson both acknowledged that they did appear at the scene but they did not participate in a car search. The other three officers did not recall any other officers stopping or participating in the vehicle search. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) alleged that PO Louis, not PO Chow, frisked him and § 87(2)(b) and further alleged that PO Louis searched them. § 87(2)(g)

Allegation A. Sgt. Terrence Creighton authorized stopping the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

Allegation B. PO Diery Louis frisked § 87(2)(b)

According to Kamins' Search and Seizure 2006, an officer "is not permitted to *frisk* the driver or other occupants of a car unless he has a reasonable basis for suspecting that the individual is armed and may be dangerous... this belief can be based on a variety of factors" (encl. 1 A). Patrol Guide Procedure 212-11 (encl. 3 A-C) instructs an officer to conduct a frisk if "you reasonably suspect you or others are in danger of physical injury." § 87(2)(g)

§ 87(2)(g). According to Kamins, "if a police officer observes a passenger engaging in furtive conduct that gives rise to a reasonable belief that the passenger is armed, a frisk will be lawful" (encl. 1 B-C) § 87(2)(g)

Allegation C. PO Diery Louis searched § 87(2)(b)

According to Patrol Guide 212-11 (encl. 3 A-C), an officer is to search someone when "frisk reveals object which may be a weapon." § 87(2)(g)

Allegation D. PO Anthony Chow frisked § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g). According to Kamins' Search and Seizure 2006, "there are certain factors that will justify the frisk of a driver; these factors will also support the frisk of a passenger" (encl. 1 B). As mentioned above, Kamins states that "if a police officer observes a passenger engaging in furtive conduct that gives rise to a reasonable belief that the passenger is armed, a frisk will be lawful" (encl. 1 B-C).

§ 87(2)(g)

Allegation E. PO Diery Louis searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.

Allegation F. PO Anthony Chow searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

§ 87(2)(g). In Kamins' Search and Seizure 2005 (encl. 2 A), the case known as *People v. Mundo* "permits an officer to articulate an actual and specific danger based solely upon the unusual behavior and furtive

movements of occupants in a car... [and] permits the search to be conducted in an 'area within the vehicle where the furtive movements had been seen.'” § 87(2)(g)

Allegation G. PO Michael Langlois searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

Allegation H. PO Leonard Mathewson searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: